

Capital
expenditure
for purposes of
Post Office
Savings Bank
not to be paid
out of Post
Office Savings
Bank Fund.

19 & 20 Geo. 5.
c. 27.

2.—(1) For the purposes of any enactment relating to expenses incurred in the execution of the enactments relating to the Post Office Savings Bank, any capital expenditure incurred after the passing of this Act for the purposes of the Post Office Savings Bank shall be deemed not to have been incurred in the execution of the said enactments.

(2) In paragraph (c) of section five of the Savings Banks Act, 1929 (which provides amongst other things that any capital expenditure incurred in providing premises used by the Postmaster-General for the purposes of the enactments relating to savings banks shall be deemed to be expenses incurred in the execution of those enactments), the words “the Postmaster-General and” and the word “respectively” shall be omitted, but without prejudice to the operation of the proviso to that paragraph and of paragraph (d) of that section in relation to expenditure charged to the Post Office Savings Banks Fund before the passing of this Act.

Short title.

3. This Act may be cited as the Post Office and Telegraph (Money) Act, 1952.

CHAPTER 35

An Act to authorise the payment out of moneys provided by Parliament of grants in respect of the ploughing up of land under grass and the carrying out of further operations on the land after ploughing.

[9th July, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Payment of
ploughing
grants in
accordance
with schemes.

1.—(1) Grants out of moneys provided by Parliament may be made, in accordance with a scheme or schemes made by the appropriate Minister with the approval of the Treasury, in respect of the ploughing up of land in the United Kingdom under grass and the carrying out of further operations on the land after ploughing.

(2) A scheme under this Act may be a separate scheme for England and Wales, or for Scotland, or for Northern Ireland, or may be a joint scheme for any two of those countries or for all three countries.

(3) A scheme under this Act—

- (a) shall specify the rates of the grants to be made in accordance therewith;
- (b) may provide for defining or limiting the kinds of land under grass in respect of which the grants are to be made, and shall require the land to have been continuously under grass for a minimum period specified in the scheme before ploughing;
- (c) may provide for the making of grants at different rates in respect of different kinds of land under grass.

(4) A grant under this Act in respect of the ploughing up of land under grass and the carrying out of further operations on the land after ploughing shall be in respect of the operations as a whole including the ploughing.

2.—(1) Grants under this Act shall be made only where land has been ploughed up within such period as is specified in the scheme in accordance with which they are made. Period in respect of which grants may be made.

(2) The period specified for the purposes of this section in the first scheme under this Act for any country shall be the period beginning with the fifth day of February, nineteen hundred and fifty-two, and ending with the thirty-first day of May, nineteen hundred and fifty-two.

(3) A period specified for the purposes of this section in any subsequent scheme under this Act shall not exceed one year.

3.—(1) A scheme under this Act may restrict the amounts of grants in any manner and make the payment of grants subject to any conditions, and may, in particular, — Supplementary provisions as to schemes.

- (a) specify a minimum area of land to be ploughed up;
- (b) provide for securing that a grant shall not be made, or shall be restricted in amount, if the appropriate Minister is of opinion that the ploughing or any further operation in respect of which the grant is to be made has been inefficiently carried out, or that adequate facilities for the inspection of the land have not been given;
- (c) make provision as to the persons to whom grants are to be made, and for securing that no grant shall be made unless application therefor is made within the time and in the manner provided by the scheme;
- (d) prohibit or restrict the payment of grants in cases in which payments out of moneys provided by Parliament under any other Act are available in respect of any of the operations in respect of which the grants are payable.

(2) The power to make a scheme under this Act shall be construed as including power to vary or revoke the scheme by a subsequent scheme:

Provided that—

- (a) any extension by a varying scheme of a period specified for the purposes of section two of this Act shall be for not more than one year; and
- (b) no such variation or revocation of a scheme shall affect the operation of the scheme in relation to any land which has been ploughed up before the variation or revocation comes into operation.

(3) The power to make, vary or revoke a scheme under this Act shall be exercisable by statutory instrument.

(4) No statutory instrument making, varying or revoking a scheme under this Act shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

Expenses of
administration.

4. Any expenses of administration incurred by a Minister of the Crown for the purposes of any scheme under this Act shall be paid out of moneys provided by Parliament.

Short title and
interpretation.

5.—(1) This Act may be cited as the Agriculture (Ploughing Grants) Act, 1952.

(2) In this Act “ the appropriate Minister ” means—

- (a) in relation to a separate scheme for England and Wales, or for Northern Ireland, the Minister of Agriculture and Fisheries;
- (b) in relation to a separate scheme for Scotland, the Secretary of State;
- (c) in relation to a joint scheme for England and Wales and Northern Ireland, the Minister of Agriculture and Fisheries, and, in relation to a joint scheme for either or both of those countries and Scotland, that Minister and the Secretary of State acting jointly.

(3) References in this Act to land under grass include references to any grazing land and, in particular, to land under clover, lucerne or sainfoin or mixtures of clover, lucerne or sainfoin with grass, but this provision shall be without prejudice to any definition or limitation contained in a scheme made under this Act.

